

Omprakash v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 9 February 2023 · Writ - C No. 4722 of 2023 · **Disposed after withdrawal of the theft demand notice.**

HEADNOTE

A writ against a demand notice for Rs.1,36,294 towards electricity charges in an alleged theft case was disposed of after the Electricity Department withdrew the notice. The Department was left at liberty to pass a fresh order after hearing the petitioner, strictly in accordance with the procedure prescribed in the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Omprakash petitioned the Allahabad High Court against the State of Uttar Pradesh and two others to challenge a demand notice dated 11 November 2020. The notice called for Rs.1,36,294 as electricity charges in a case of alleged theft of electricity. Before the Court, counsel for the Electricity Department stated that the notice had been withdrawn and that the Department would pass a fresh order after giving the petitioner a hearing.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

fresh order after withdrawal of a theft demand

HOLDING

Where the Electricity Department withdraws a demand notice for electricity charges in a theft case, the writ challenging that notice is disposed of without a decision on liability. The Department has liberty to pass a fresh order only after affording the consumer a hearing, and that order must be strictly in accordance with the procedure prescribed in the Electricity Supply Code, 2005. ¶ 1

FLAG The order names the Electricity Supply Code, 2005 and no clause number. Catalog hit JH-2005::9.2 is another State's code and is not applied.

PRINCIPLE TAGS

fresh-order-strictly-per-supply-code-procedure After the Department withdrew the theft demand, the writ was disposed of with liberty to pass a fresh order only after a hearing and strictly in accordance with the procedure in the Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS LIABLE FOR THEFT OF ELECTRICITY AND FOR THE SUM OF RS.1,36,294 DEMANDED BY THE NOTICE DATED 11.11.2020.

The impugned notice was withdrawn. Any fresh order was left to a hearing and the procedure in the Electricity Supply Code, 2005. ¶ 1